

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CLMC044162: ELIZABETH SPAVENTO vs INSIDE CAR GUYS, LLC

08/14/2026 in Department 21

Motion to be Relieved as Counsel for Defendant

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions: Motion by Attorney Rosa Noyola (“Moving Attorney”), to be relieved as counsel for Defendant Inside Car Guys, LLC. (“Defendant” or “Client”) (*unopposed*).

Tentative Ruling: Moving Attorney’s motion to be relieved as counsel is GRANTED. Moving Attorney is directed to submit an updated Proposed Order that gives notice of the Plaintiff’s motion to compel Defendant to pay Arbitration fees and costs, scheduled for 10/20/26.

Counsel’s withdrawal will be effective as of the date of filing the proof of service of the signed Order upon defendants at their last known address. (Cal. Rules of Ct., rule 3.1362(e).) □

Moving party to give notice of this Court’s ruling within two (2) court days.

Merits: An attorney may withdraw at any time “[u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (CCP, § 284.)

Rules of Professional Conduct, Rule 1.16(b)(4) allows an attorney to withdraw when “the client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively.”

Rules of Professional Conduct, rule 1.16(d) states: “A lawyer shall not terminate a representation until the lawyer has taken reasonable* steps to avoid reasonably* foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel.”

Here, the facts in the declarations indicate that Rules of Professional Conduct, Rule 1.16(b)(4) supports granting the motion. The declaration states that there has been a breakdown of the attorney-client relationship.

Therefore, the motion will be GRANTED, with the caveat that Moving Attorney must update the proposed order.